

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004772

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CITY OF MILL VALLEY

vs.

DEFENDANT: WILLIAM EARL
MCGLASHAN, JR

NATURE OF PROCEEDINGS: 1) MOTION - COMPEL ANSWERS TO
INTERROGATORIES - DISCOVERY FACILITATOR PROGRAM
2) MOTION - COMPEL ANSWERS TO INTERROGATORIES - DISCOVERY
FACILITATOR PROGRAM
3) MOTION - COMPEL ANSWERS TO INTERROGATORIES - DISCOVERY
FACILITATOR PROGRAM

RULING

The motions brought by the City of Mill Valley ("City") to compel Plaintiff Shanna Kay Upton ("Upton") are moot. The City's request for sanctions, however, is **granted in part**. Upton shall pay counsel for the City **\$1260** within twenty (20) days of this order. Upton's request for sanctions is denied.

Discussion

After the motions to compel were filed in this case, Upton provided further discovery responses to the City. She contends that the City's motions should be denied as moot. Upton contends that the City should have withdrawn the motions and she seeks sanctions against the City for failing to do so.

The City acknowledges that Upton has provided further responses but nonetheless asserts that its request for sanctions has not been resolved. The City contends that it should be awarded sanctions for having had to bring the motions which were necessitated by Plaintiff's failure to meet and confer in good faith.

To the extent the motions seek to compel further responses they are moot. However, contrary to Upton's argument, providing responses after a motion to compel has been filed does not mean sanctions cannot be imposed under the Discovery Act. (See Cal. Rules of Court, rule 3.1348.) The City was the prevailing party because its motions resulted in Upton providing further responses. In addition, Upton had opportunities to resolve the discovery dispute through the

meet and confer process but communicated that she would not provide further responses. Failing to meet and confer in good faith is an independent discovery abuse for which sanctions are authorized. (See Code Civ. Proc., § 2023.20; *Moore v. Mercer* (2016) 4 Cal.App.5th 424, 448.)

The City's request for sanctions is granted in part. City is awarded reasonable sanctions in the amount of \$1260 representing six hours of attorney time at a rate of \$210 per hour. Upton's request for sanctions against the City is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005504

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CHRISTINE TSUCHIDA

vs.

DEFENDANT: GARY HILL, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendants Crystal Keller (“Keller”), Hamilton Zanze, and Mission Rock Residential California, Inc.’s (“Mission Rock”; these three together, “Movants”) motion for summary judgment or, alternatively, summary adjudication is **DENIED**.

Background

This is a dog bite case. Plaintiff Christine Tsuchida (“Plaintiff”) alleges that on October 24, 2024, she and Gary Hill (“Hill”) were both residents at the Mission Rock at North Bay Apartments complex in Novato. (FAC, ¶ 13-14.) Hill allegedly “allowed his dog[,]” Lancelot, “to break free from his apartment[.]” (*Id.* at ¶ 14.) Lancelot allegedly bit the back of Plaintiff’s right arm as she returned to her apartment following a grocery shopping trip. (*Id.* at ¶¶ 14, 16.)

In addition to claims against Hill and as-yet-unidentified Does, Plaintiff’s FAC asserts a cause of action for negligence against Movants. The pleading describes Hamilton Zanze, a corporate entity, as the owner of the apartment complex at issue; Mission Rock as the property manager; and Keller as an agent, employee, or contractor of Hamilton Zanze, Mission Rock, and/or a Doe defendant. (FAC, ¶¶ 7-9.) Plaintiff alleges that Movants “created the dangerous conditions” leading to her injuries in that they had actual knowledge of Lancelot’s “dangerous propensities” for some time but did not issue warnings about him and did not take adequate measures to protect the complex’s residents from the dangerous dog. (*Id.* at ¶¶ 25-26.)

Before the Court is Movants’ motion for summary judgment, or, alternatively, summary adjudication.